

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

July 27, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

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50.		
51.	Bat Nha Mediation Institute of the United States of America v. Do 2024- 01391930	Third party Scott Bergmann's motions for leave to intervene and expunge lis pendens are GRANTED. The lis pendens recorded against real property located at 2482 Griffin Way, Corona, California is EXPUNGED. The requests for judicial notice are GRANTED. Code of Civil Procedure section 405.30 explicitly permits "any party, or any nonparty with an interest in the real property affected thereby" to apply to the court to expunge a lis pendens. However, the statute imposes a critical procedural requirement: "a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice." This intervention requirement ensures that the third party becomes a proper party to the proceedings before seeking relief. A property owner whose property has been mistakenly encumbered by a lis pendens clearly has an interest in the real property, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged." <i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4th 1003. Once intervention is granted, the third party has strong grounds for expungement. Code of Civil Procedure section 405.31 mandates that "the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." A "real property claim" is defined as "the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property." Ca. Civ. Pro. Section 405.4. Where, as here, the underlying litigation does not involve the third party's property at all—meaning the property was recorded on accidentally—then the pleading contains no real property claim as to that property. Pursuant to C.C.P. § 405.38, the court orders plaintiff to pay intervenor Bergmann \$1870 in attorney's fees and costs in pursuing this matter with the court. Plaintiff shall make payment to intervenor through counsel of record within 30 days of notice of this ruling. Bergmann shall give notice of this ruling.

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52.	Castro v. Cies Family Trust 2023-01322100	Defendant Coldwell Banker Realty's Motion for Undertaking is DENIED as it has been dismissed from this action with prejudice. (See ROA 340) Defendant The Cies Family Trust's Joinder in the Motion is also DENIED. Pursuant to Code of Civil Procedure § 1030, Defendant Coldwell Banker Realty initially moved for order requiring Plaintiff to post an undertaking in the amount of \$69,135.87. The motion was joined by defendant The Cies Family Trust ("CFT"). CFT seeks an undertaking in the amount of \$90,000. Under Section 1030(a), an undertaking must be in an amount sufficient as security for "costs and attorney's fees which may be awarded in the action." Here, CFT has provided no persuasive evidence for the \$90,000 undertaking it seeks. CFT's counsel states it has incurred approximately \$3,793.60 in costs, but does not provide a sufficient basis for the additional \$86,000+ in costs it seeks. Therefore, even assuming CFT has met all the statutory requirements of Section 1030(a), the Court has no basis to require Plaintiff to post a \$90,000 undertaking. Additionally, in the opposition, Plaintiff has created a factual dispute regarding Defendant's knowledge of a water leak which sufficiently challenges whether there is a reasonable possibility that Defendant will prevail. On reply CFT argues for the first time that Plaintiff failed to name Leslie Cies and Dr. Cies as trustees of the Cies Family Trust, as a trust is not a separate legal entity capable of being sued. It requests the Court to consider this issue in ruling on the motion. "It is elementary that points raised for the first time in a reply brief are not considered by the court." (<i>Levin v. Ligon</i> (2006) 140 Cal.App.4th 1456, 1486.) Because CFT failed to raise this issue in its Joinder, the Court will not consider the argument. For the foregoing reasons, the motion is also DENIED as to defendant CFT. Defendant The Cies Family Trust shall give notice of this ruling.
53.	Daichendt v. Aviation Consultants, Inc.	<u>Defendants Aviation Consultants, Inc., William Borgsmiller, Freeman Holdings of CenCA LLC and Nathan Ross' Motion to Strike Portions of the Fifth Amended Complaint</u>

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2023-01306989		Defendants Aviation Consultants, Inc. ("ACI"), William Borgsmiller, Freeman Holdings of CenCA LLC and Nathan Ross' (collectively "ACI defendants") Motion for an Order Striking Plaintiff Joseph Daichendt's Fifth Amended Complaint, or, in the Alternative Striking Portions of the Fifth Amended Complaint is GRANTED in part and DENIED in part. (Code Civ. Proc. §436, subd. (b) [court may "[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."]; see also <i>Harris v. Wachovia Mortgage, FSB</i> (2010) 185 Cal.App.4th 1018, 1023 [plaintiff may amend complaint only as authorized by and within the scope of the order granting leave to amend].) The request to strike the entirety of the Fifth Amended Complaint is DENIED. The ACI defendants move to strike the 3rd cause of action that alleges a derivative claim for breach of fiduciary duty on the ground that this amendment exceeds the scope of leave to amend provided by the court in its ruling on the demurrer to the Fourth Amended Complaint. The court permitted Plaintiff to amend his cause of action for Fraudulent Concealment as follows: "Plaintiff shall have one final opportunity to amend the pleading to allege with factual particularity a theory of fraudulent concealment involving misconduct and injury that could support an individual claim, or otherwise plead a viable cause of action, as well as the demurring defendants' role in aiding and abetting." (ROA 1330 [3/26/26 Minute Order].) Nowhere in the court's order is Plaintiff given leave to insert an entirely new derivative cause of action based upon a different legal theory of alleged wrongdoing committed against ACIOC. Since this newly added cause of action exceeds the scope of the court's order granting Plaintiff one final opportunity to amend his Complaint to state facts supporting a claim for fraudulent concealment, this cause of action is not "Drawn or filed in conformity with ... an order of the court" and is thus subject to a motion to strike. The 3rd cause of action for breach of fiduciary duty (derivatively) is ordered STRICKEN. The ACI defendants also move to strike certain other portions of the Fifth Amended Complaint that reflect changes made that were not addressed in the court's order concerning the demurrer to the Fourth Amended Complaint. In response, Plaintiff essentially argues that the changes were immaterial

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		to the overall format of the pleading, and were taken to refine the operative complaint. As this is the Fifth Amended Complaint, any word-smithing changes are beyond the leave granted by the court to address issues raised by the prior demurrer. The ACI defendants have sufficiently identified the additional edits made that are subject to being stricken. (See Decl. of Klein, ¶ 8; Exh. 1). The court orders STRICKEN all modifications that appear in the Fifth Amended Complaint that did not exist in the Fourth Amended Complaint. Plaintiff is granted leave to file an amended complaint that (1) omits the third cause of action; and (2) that restores the verbiage from the Fourth Amended Complaint. The amended complaint shall be filed within 5 days. The case management conference is continued to December 7, 2026 at 9:00 a.m. in Department C28. The ACI defendants' demurrer to the Fifth Amended Complaint is DENIED as moot, as the challenged cause of action has been stricken. <u>Defendant ACI Jet Orange County, LLC's Motion to Strike Portions of the Fifth Amended Complaint</u> Defendant ACI Jet Orange County, LLC's ("ACIOC") Motion to Strike Fifth Amended Complaint is GRANTED in part. (Code Civ. Proc. §436, subd. (b) [court may "[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."]; see also <i>Harris v. Wachovia Mortgage, FSB</i> (2010) 185 Cal.App.4th 1018, 1023 [plaintiff may amend complaint only as authorized by and within the scope of the order granting leave to amend].) ACIOC moves to strike the Fifth, Sixth, and Seventh Causes of Action for declaratory relief in the Fifth Amended Complaint and against ACIOC. ACIOC successfully obtained summary adjudication of these claims in its favor. (ROA 1097 [11/18/25 Minute Order].) Plaintiff has explained how these causes of actions appeared in the Fifth Amended Complaint, and agrees that Plaintiff is not seeking to recover against ACIOC as to these claims. Accordingly, the Motion to Strike is GRANTED.

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		Based on the court's ruling on the ACI defendants' motion to strike, ACIOC's motion to strike the 3rd cause of action is DENIED as moot. ACIOC's demurrer to the Fifth Amended Complaint is DENIED as moot, as the challenged causes of action have been stricken. ACIOC shall give notice of this ruling.
54.	G&D Scarborough Family Limited Partnership, LLP v. Green Zahn and Associates 2025- 01507294	Defendant Green Zahn and Associates' Demurrer to the First Amended Complaint ("FAC") is SUSTAINED. Defendant demurs to the second through fifth causes of action of the FAC. Second and Third Causes of Action – Breach of Fiduciary Duty and Constructive Fraud "The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, its breach and damage proximately caused by that breach." (<i>Meister v. Mensinger</i> (2014) 230 Cal.App.4th 381, 395.) The elements for a claim of constructive fraud are "(1) a fiduciary or confidential relationship; (2) nondisclosure (breach of fiduciary duty); (3) intent to deceive; and (4) reliance and resulting injury (causation)." (<i>Younan v. Equifax Inc.</i> (1980) 111 Cal.App.3d 498, 516, fn. 14.) Both causes of action are based on Plaintiff's allegation that Defendant was a fiduciary of the G&D Scarborough Family Limited Partnership ("G&D"). The FAC now alleges that Green Zahn and Associates' ("GZA") signature on the returns constituted an agreement to represent G&D as an agent before the IRS such that there was an agency relationship. But there is no allegation that GZA represented G&D before the IRS, and Plaintiff does not explain how Defendant's agreement to prepare and file its tax returns obligates Defendant to represent it before the IRS. Moreover, Plaintiff's claims against Defendant do not arise out of any representation of it before the IRS. Thus, any limited agency that might have existed between the parties is not relevant to the claims asserted herein. "[B]reach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence" (<i>Stanley v. Richmond</i> (1995) 35 Cal.App.4th 1070, 1086.) As with the prior Complaint, the relationship between Plaintiff and Defendant is based upon allegations that Defendant provided

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		accounting and tax services to Plaintiff related to the sale of the subject properties. This does not give rise to a fiduciary duty. The FAC does not allege that Defendant was engaged to provide tax-planning advice, estate advice, transactional counsel, or discretionary financial oversight. Defendant was not entrusted with Plaintiff's property and Defendant is only alleged to have negligently performed services. Further, there are no allegations with respect to the third cause of action that Defendant intended to deceive Plaintiff. Accordingly the demurrer to the second and third causes of action is SUSTAINED. Fourth and Fifth Causes of Action – Intentional Misrepresentation and Negligent Misrepresentation "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal. 4th 631, 638.) The elements of a claim for negligent misrepresentation are "(1) a false statement of a material fact that the defendant honestly believes to be true, but made without reasonable grounds for such belief, (2) made with the intent to induce reliance, (3) reasonable reliance on the statement, and (4) damages." (<i>Century Sur. Co. v. Crosby Ins., Inc.</i> (2004) 124 Cal.App.4th 116, 129.) Both negligent and intentional misrepresentation must be alleged with particularity. (<i>Foster v. Sexton</i> (2021) 61 Cal.App.5th 998, 1028 ["For policy reasons, some causes of action, such as fraud and negligent misrepresentation, must be pleaded with particularity..."].) As with the prior Complaint, all that is alleged in the FAC is that Defendant lacked the ability and skill to perform the services agreed to. The FAC does not allege any facts that Defendant knew any representations it made were false or were made without reasonable grounds for believing them to be true. A conclusory statement that Defendant represented they had "specialized accounting knowledge and expertise to handle the FLP accounts," without more, does not amount to fraud. Accordingly, the demurrer to the fourth and fifth causes of action is SUSTAINED.

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		The demurrer is SUSTAINED without leave to amend as the Court has previously sustained the demurrers to the original complaint on the same grounds. Plaintiff has failed to cure the defects, and plaintiff has not articulated a plausible way for it to plead these claims successfully. MOTION TO STRIKE Defendant Green Zahn and Associates' Motion to Strike Certain Portions of the First Amended Complaint is MOOT in light of the Court's ruling on Defendant's demurrer to the second cause of action. Defendant shall file an answer within 10 days. The case management conference is continued to December 7, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
55.		
56.	Leiva Lemus v. Brito Alonzo 2024- 01384391	Defendants Ruben Brito, Anabel De Brito, Floriberto Brito Alonzo, Maria Del Carmen Norato De Brito and Randi Brito's motion to set aside the March 9, 2026 order striking their answers to the complaint is GRANTED. Plaintiff's request for judicial notice is GRANTED. Defendants claim the order striking their answer arose due to "excusable neglect" in that they failed to timely update their addresses with the court and thus had no notice of (or opportunity to respond to) the subject motion to strike. They further argue that plaintiff failed to comply with the meet and confer obligations prior to filing the motion to strike, which also provides grounds for excusable neglect. Under California Code of Civil Procedure section 473(b), a court may relieve a party from an order taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect, provided the application is made within a reasonable time not exceeding six months. Courts have recognized that discretion should generally be exercised in favor of allowing parties to defend on the merits where possible. Early case law established that any doubt as to the propriety of setting aside a default should be resolved in favor of the application, and that courts should exercise discretion to promote substantial justice. <i>Bank of Haywards v. Kenyon</i> (1917) 32 Cal.App.635.

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		Here, defendants persuasively establish that the court granted plaintiff's motion to strike when plaintiff had not engaged in a meet and confer. Had plaintiff complied, defendants would have been on notice of the need to verify their answers. Under these circumstances, the court agrees that defendants' motion under section 473(b) to set aside the order striking the answer has merit. The court ORDERS the ruling from March 9, 2026 striking defendants' answer and entering default SET ASIDE. Defendants shall file their verified answer within 5 days of this order. Defendants have attached the proposed answer as exhibit A to their reply. That proposed answer must be separately filed with the court within 5 days. Defendants, however, are admonished that they must comply with legal process and procedures. California Rules of Court, Rule 2.200 requires "An attorney or self-represented party whose mailing address, telephone number, fax number, or e-mail address (if it was provided under rule 2.111(1)) changes while an action is pending must serve on all parties and file a written notice of the change." Similarly, California Rules of Court, Rule 2.251 requires a party or other person whose electronic service address changes while the action or proceeding is pending to promptly file a notice of change of address electronically with the court and must serve this notice electronically on all other parties and all other persons required to be served. Defendants did not timely advise plaintiff or the court of changed circumstances. Defendants are reminded that a self-represented litigant must expect and receive the same treatment as if represented by an attorney — no different, no better, no worse. The status conference regarding the default judgment is vacated. The case management conference is continued to December 7, 2026 at 9:00 a.m. in Department C28. The clerk shall give notice of this ruling.
57.	Logan & Logan Construction Inc. v. RRCZ Investments LLC	Cross-Defendant Logan & Logan Construction, Inc.'s demurrer to Cross-Complainant RRCZ Investments LLC's First Amended Cross-Complaint ("FACC") is SUSTAINED as to the First and Second Causes of Action and OVERRULED as to the Third Cause of Action. (Code Civ. Proc. §430.10, subd. (e). The

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2024-01430488		special demurrer for uncertainty is OVERRULED. (Code Civ. Proc. §430.10, subd. (f).) <u>General Legal Standard on Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Although courts should take a liberal view of inartfully drawn complaints, (see Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>Special Demurrer for Uncertainty</u> Demurrers for uncertainty are disfavored. The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that Defendant cannot reasonably respond. <i>Khoury v. Maly's of California Inc.</i> (1993) 14 Cal.App.4th 612, 616. Here, the Cross-Complaint is not so uncertain that Cross-Defendant is unable to intelligently respond. Any purported uncertainty in the FACC is a matter to be resolved through discovery. <u>Cause of Action No. 1--Equitable/Implied Indemnity</u> Cross-Defendant argues that this cause of action is premature as there has yet to be a determination of liability or a judgment against Cross-Complainant upon which a claim on indemnity may be based.

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		In the context of a construction defect claim, equitable indemnity "is designed to do equity among defendants. Under the equitable indemnity doctrine, defendants are entitled to seek apportionment of loss between the wrongdoers in proportion to their relative culpability ... to avoid the unfairness, under joint and several liability theory, of holding one defendant liable for the plaintiff's entire loss while allowing another responsible defendant to escape..." (<i>Gem Developers v. Hallcraft Homes of San Diego, Inc.</i> (1989) Cal.App.3d 419, 426-427.) "A defendant/indemnitee may in an action for indemnity seek apportionment of the loss on any theory that was available to the plaintiff upon which the plaintiff would have been successful." (<i>Id.</i> at 430.) "[A] defendant may pursue a comparative equitable indemnity claim against other tortfeasors either (1) by filing a cross-complaint in the original tort action or (2) by filing a separate indemnity action after paying more than its proportionate share of the damages through the satisfaction of a judgment or through a payment in settlement." (<i>Evangelatos v. Superior Court</i> (1988) 44 Cal.3d 1188, 1197-1198.) Here, Cross-Complainant seeks to pursue an implied/equitable indemnity claim in a separate action from the underlying claims asserted by purchasers of one of the subject properties. However, Cross-Defendant has not alleged it has paid any damages to the plaintiff in that action, neither through satisfaction of a judgment or pursuant to a settlement agreement. Thus, the claim for equitable indemnity must be brought as a cross-complaint in the original action or Cross-Complainant must wait until the underlying matter has resolved to seek indemnification through a separate proceeding. Accordingly, Cross-Complainant's cause of action for indemnification is premature and subject to demurrer unless it is asserted as part of a cross-complaint in the underlying action brought against Cross-Complainant by the purchasers of the subject property. Since the claim is not ripe, the demurrer is SUSTAINED. <u>Cause of Action No. 2--Promissory Fraud</u> To plead a legally sufficient cause of action for fraud, the pleader must allege (1) a misrepresentation; (2) the defendant's knowledge of the falsity of the misrepresentation; (3) intent to induce plaintiff's reliance on the misrepresentation; (4) actual reliance upon the

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		misrepresentation; (5) causation; and (6) resulting damages. (<i>Robinson Helicopter Co., Inc. v. Dana Corp.</i> (2005) 35 Cal.4th 979, 990.) Additionally, fraud must be pleaded specifically to withstand a general demurrer. Thus, to state a legally sufficient cause of action for fraud, a plaintiff must plead specific facts that "show how, when, where, to whom, and by what means the representations were tendered." (<i>Hamilton v. Greenwich Investors XXVI, LLC</i> (2011) 195 Cal.App.4th 1602, 1614.) When alleging fraud against a corporate defendant, the level of specificity is even higher. Namely, a plaintiff must "allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 645.) "'Promissory fraud' is a subspecies of the action for fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud." (<i>Lazar, supra</i>. 12 Cal.4th at 638.) A cause of action for promissory fraud must be pleaded with specificity. (<i>Beckwith v. Dahl</i> (2012) 205 Cal.App.4th 1039 [applying heightened specificity requirement for pleading false promise].) Here, Cross-Defendant demurs to this cause of action because it is not pleaded with sufficient particularity. The FACC alleges Cross-Defendant's present intent not to perform at the time of making the promise in purely conclusory terms. No facts are alleged as a basis for the claim that Cross-Defendant made a promise without any intent to perform. All the FACC does is point to alleged breaches of the promise to promptly complete the work contemplated by the contract. This is not sufficient to state a cause of action for promissory fraud. The demurrer to this cause of action is SUSTAINED. <u>Cause of Action No. 3--Intentional Interference with Contractual Relationship</u> The elements of a cause of action for intentional interference with contractual relations are: (1) a valid contract between the complainant and a third party; (2) the defendant's knowledge of the contract; (3) intentional conduct on the part of the defendant that was intended to or would necessarily result in a breach or disruption of the contractual relationship; (4) an actual breach or disruption of the contractual

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		relationship; and (5) resulting damages. (See <i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55.) Cross-Defendant argues that this cause of action fails because (1) the Cross-Defendant is not alleged to be a stranger to the contractual relationship that was allegedly disrupted and (2) the FACC does not allege the element of intent. The demurrer is OVERRULED. The FACC alleges an intentional disruption of Cross-Complainant's contracts with third party buyers of the subject properties. There is no indication in the allegations of the FACC that Cross-Defendant was a party to such transactions. <u>Leave to Amend</u> Leave to amend shall be granted after a demurrer is sustained if there is "a reasonable possibility of an amendment that would cure the complaint's legal defect or defects." (<i>Yvanova v. New Century Mortgage Corp.</i> (2016) 62 Cal.4th 919, 924.) Here, there is a reasonable possibility that the defects identified in the Second Cause of Action could be cured through amendment. Accordingly, Cross-Complainant may, within 20 days of this ruling, file a Second Amended Cross-Complaint to attempt to address the factual deficiencies in its causes of action for Promissory Fraud. With respect to the First Cause of Action for Indemnity, it does not appear that there is a reasonable possibility Cross-Complainant could allege it has paid more than its proportionate share of the damages sought against it in the Alley action, as no judgment has been rendered in that action and the action has not settled. If Cross-Complainant seeks to assert its indemnity claims against Cross-Defendant prior to the resolution of the Alley lawsuit, Cross-Complainant must file a cross-complaint in the original action. Since the indemnity claims are premature unless raised via cross-action in the original action, there is no reasonable possibility that an amendment could cure the defect. Should circumstances change with respect to a resolution of the Alley matter, Cross-Complainant may elect to seek leave to amend the Cross-Complaint to include indemnity claims. <u>Motion to Strike</u> Cross-Defendant's Motion to Strike Portions of the First Amended Cross-Complaint is GRANTED. (Code Civ. Proc. §§ 435, 436.)

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		A claim for punitive damages must be supported by specific factual allegations. The mere conclusory characterization of a defendant's conduct as "intentional, willful and fraudulent is a patently insufficient statement of 'oppression, fraud, or malice, express or implied, within the meaning of Civil Code section 3294.'" (<i>Brousseau v. Jarrett</i> (1977) 73 Cal.App.3d 864, 872.) Claims for punitive damages "must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious ... [p]unitive damages may not be pleaded generally." (<i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193.) Here, the FACC only asserts conclusory labels to support the claim for punitive damages. Cross-Complainant shall include specific facts that justify a claim for punitive damages if it elects to file a Second Amended Cross-Complaint. Cross-Defendant shall provide notice of this ruling.
58.	The People of the State of California v. Experian Data Corp. 2019-01047183	Defendant Experian Data Corp.'s motion to bifurcate issues at trial is DENIED. (Code Civ. Proc., §§ 597, 598, 1048, subd. (b).) Moving party has not presented sufficient evidence, as opposed to argument, showing that trying its statute of limitations defense first, will further convenience, avoid prejudice, or be conducive to expedition and economy. (Code Civ. Proc., §§ 597, 598, 1048, subd. (b); see also <i>Gilman v. Dalby</i> (2021) 61 Cal.App.5th 923, 940 ["statements in motions are not evidence"].) Plaintiff shall give notice of this ruling.
59.		
60.	Zamarron v. State of California 2023-01369253	<u>Motion for Leave to Amend</u> Plaintiffs Esmeralda Zamarron and Alejandro Flores Jr.'s motion for leave to file first amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; accord, <i>S.C. v. Doe 1</i> (2025) 115 Cal.App.5th 365, 383.) Plaintiffs are ORDERED to separately file the proposed first amended complaint (Navarro Decl. at Ex. A) within two court

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